

Relief also cannot be granted through the pourover will. "In the absence of any transfer to [a] trust prior to [decendent's] death," assets become part of the decedent's estate despite will language expressing decedent's desire that assets be held in trust. *Placencia v. Strazicich* (2019) 42 Cal.App.5th 730, 735 & 743-744 (emphasis added). "It [is] error for the court to award [such property] directly to [a] trust in the absence of a probate proceeding." *Id.*, citing *Estate of Hart* (1957) 151 Cal.App.2d 271, 280–281. See also Prob.C. § 7001. "[A] probate court ha[s] no power to consider the legality of a will until it [is] regularly brought before it by a petition for its probate." *Estate of Burnett* (1935) 6 Cal.App.2d 116, 123.

These calendar notes are not a tentative ruling by the court on the merits of the petition. They are provided to assist the court and the parties to prepare for the hearing. Local Rule 80.1.4.

26. S-PR-0014215 In Re the Estate of Ward, Jay

Petition to administer estate is recommended for approval as prayed.

27. S-PR-0014216 In Re the Estate of Albrecht, Peter

Missing sufficient publication of notice of hearing. Notice as published states incorrect location information for Department 2. Department 2 is located at Historic Courthouse, 101 Maple Street, Auburn, and not at the Hon. Howard G. Gibson Courthouse in Roseville.

28. S-PR-0014313 In Re the Robert Des Jardin & Virginia Des Jardin Rev Trust

Appearance is required for status hearing re ex parte application and order.

Missing evidence of personal service of ex parte order and other required papers on Stephen Des Jardin as previously ordered.

Note: the original petition and other filings indicate Stephen's surname is *Des Jardins*. Recent filings abandon that formulation in favor of *Des Jardin*.